



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 6963 (EXTENSION)
FIRST REVISION July 28, 1978

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6963 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Suzanne Hedgpelt
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 27 1993

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Rhone-Poulenc Chemicals Ltd.
Watford, England
(U.S. AGENT: CT Corporation
New York, NY)

April 13, 1993



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590

DOT-E 6963
(FIRST REVISION)

1. I.S.C. Chemicals Limited, Bristol, England (U.S. Agent: CT Corporation System, Washington, D.C.) is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes use of non-DOT specification intermodal portable tanks and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on I.S.C. Chemicals Limited's (RTZ Chemicals Group) applications dated March 23, 1978, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Hydrofluoric acid (70% and 80%) and anhydrous hydrofluoric acid, classed as corrosive materials.

4. PROPER SHIPPING NAME (49 CFR 172.101). Hydrofluoric acid or Hydrofluoric acid, anhydrous, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.264(a), 173.264(b).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a non-DOT specification portable tank constructed in accordance with W. P. Butterfield (Engineers) Ltd.'s, Drawing Nos. B.768.131/B, as amended, and B.768156, on file with the Office of Hazardous Materials Regulation (OHMR).

b. Each tank must meet ISO standards and be hydrostatically tested to 150 psig. In addition, each tank must have (1) maximum gross weight of 44,800 pounds, (2) maximum allowable working pressure of 100 psig, (3) pressure relief valve setting of 100 psig, (4) pressure relief valve capacity of 675,000 CFH, and (5) a minimum service temperature of 0°F.

c. Tank serial numbers must be on file with the OHMR.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel and motor vehicle used to transport packages covered by this exemption.

c. For shipment by water:

1. Self contained breathing apparatus and rubber protective clothing must be provided for damage control personnel.
2. Tank must be stowed on "deck".
3. Tanks must be filled so that they do not become liquid full at 130°F.
4. A supply of neutralizers such as sodium carbonate must be readily available to minimize effects of spills or leaks.

d. Each portable tank must be reinspected and retested as prescribed for DOT Specification 51 portable tanks.

e. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 6963."

9. REPORTING REQUIREMENTS.

a. The owner of the tanks covered by this exemption shall provide to the OHMR a list of all shippers who have shipped under this exemption and a shipping experience report every six months from the effective date of this exemption. The shipping experience report shall contain approximate number of shipments made during the previous six months and any difficulties encountered.

b. The holder of this exemption, as identified in paragraph 1 above, shall contact the OHMR immediately after any of the tanks covered by this exemption are sold to another party.

c. Shippers who ship under the terms of this exemption shall report any incident involving loss of contents of the tanks described herein to the OHMR as soon as practicable.

10. EXPIRATION DATE. May 1, 1980.

Issued at Washington, D.C.:

for Douglas A. Roberts
Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JUL 28 1978

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: B of E, USCG, FHWA